

25SMCV03853 25SMCV03853

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-08-05

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=BH%20%2C207%2C08%2F05%2F2026

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Case Number: 25SMCV03853 Hearing Date: August 5, 2026 Dept: 207

TENTATIVE RULING – NO. 1

DEPARTMENT

207

HEARING DATE

August 5, 2026

CASE NUMBER

25SMCV03853

MOTION

Motion to Vacate Judgment

MOVING PARTY

Plaintiff Khaled Ouaz a/k/a "Kade Wise"

OPPOSING PARTY

none

MOTION

On July 28, 2025, Plaintiff Khaled Ouaz a/k/a Kade Wise ("Plaintiff") brought suit against Defendants 20th Century Television, Inc., fka 20th Century Fox Television, Inc. ("20th Century"); Lee Daniels Entertainment, Ltd. ("Lee Daniels Ent."); Danny Strong Productions ("Danny Strong Prod."); Imagine Entertainment, Inc. ("Imagine"); Dana Walden ("Walden"); Gary Newman ("Newman"); Lee Daniels ("Daniels"); Danny Strong ("Strong"); Sanaa Hamri ("Hamri"); Paolo Nieddu ("Nieddu"); Brian Grazer ("Grazer"); Carlito Rodriguez ("Rodriguez"); Jonnie Davis ("Davis"); Carolyn Cassidy ("Cassidy"); Howard Kurtzman ("Kurtzman"); Brett Mahoney ("Mahoney"); Diane Ademu-John ("Ademu-John"); Ilene Chaiken ("Chaiken"); Craig Berger ("Berger"); Matt Pyken ("Pyken"); Dennis Hammer ("Hammer"); Joshua Allen ("Allen"); Eric Haywood ("Haywood"); Jasheika James; Janeika James; Dianne Houston ("Houston"); and Jamie Rosengard ("Rosengard").

The operative First Amended Complaint ("FAC") was filed on September 15, 2025, alleging eighteen causes of action as follows:

1. Breach of Contract
2. Intentional Misrepresentation
3. Fraudulent Concealment
4. Actual Fraud
5. Defamation of Character
6. Breach of Implied Covenant of Good Faith and Fair Dealing
7. Intentional Interference with Contractual Relations
8. Intentional Interference with Prospective Economic Relations
9. Demotion Discrimination
10. Promotion Discrimination
11. Political Discrimination
12. Intersectional Discrimination
13. Disparate Impact Discrimination
14. Retaliation
15. Right of Publicity

16. Civil Conspiracy

17. Intention Infliction of Emotional Distress

18. Negligence

On April 30, 2026, the Court sustained the demurrer of Defendants 20th Century, Lee Daniels Ent., Imagine, Walden, Newman, Daniels, Hamri, Grazer, Cassidy, Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard ("Prevailing Defendants") without leave to amend.

Judgement was entered in favor of the Prevailing Defendants on June 18, 2026.

Plaintiff now moves to vacate the judgment pursuant to Code of Civil Procedure section 663. The motion is unopposed.

LEGAL STANDARD

A judgment or decree, when based upon a decision by the court, or the special verdict of a jury, may, upon motion of the party aggrieved, be set aside and vacated by the same court, and another and different judgment entered, for either of the following causes, materially affecting the substantial rights of the party and entitling the party to a different judgment:

1. Incorrect or erroneous legal basis for the decision, not consistent with or not supported by the facts; and in such case when the judgment is set aside, the statement of decision shall be amended and corrected.
2. A judgment or decree not consistent with or not supported by the special verdict.

(Code Civ. Proc., § 663.)

ANALYSIS

I. Procedural Issues

Code of Civil Procedure section 663a governs the mandatory, jurisdictional time frames for a motion to vacate. A notice of motion to vacate must be filed and served within fifteen (15) days of the clerk providing notice of entry of the judgment. (Code Civ. Proc., § 663a, subd. (a)(2).) The provisions of Code of Civil Procedure section 1013 extending the time for exercising a right or doing an act where service is by mail do not apply to extend this time. (See Code Civ. Proc., § 663a, subd. (c).)

Here, the judgment was entered on June 18, 2026, and the clerk provided notice to Plaintiff by mail on June 22, 2026. Plaintiff therefore had until July 7, 2026 to file and serve the motion to vacate. Thus, Plaintiff's July 6, 2026 Notice of Motion and Motion to Vacate was timely filed and served.

Plaintiff has ten (10) days thereafter to file and serve the motion and supporting papers. (Code Civ. Proc., § 659a [new trial], § 663a, subd. (d) [vacate].) At the same time Plaintiff filed the Notice, Plaintiff also filed the Motion papers.

The opposing party has ten (10) days thereafter to file the opposition. (Ibid.) Here, no such opposition has been received to date.

These timeframes can be extended only by up to 10 days by stipulation or on a showing of good cause by affidavit. Thus, to the extent any opposition is subsequently filed, the Court is without jurisdiction to consider it.

II. Substantive Issues

Plaintiff moves to vacate the judgment on the grounds that the judgment rests upon an incorrect or erroneous legal basis that is inconsistent with or unsupported by the facts, pursuant to Code of Civil Procedure section 663, subdivision (1). Specifically, Plaintiff argues:

(1) the Court employed the wrong pleadings standards and interpretations by improperly requiring a more heightened pleadings standard than “ultimate facts” and by not making all inferences in Plaintiff’s favor.

(2) the Court improperly interpreted the plain language of the contract at issue, instead of allowing the matter of contract interpretation to proceed to discovery.

(3) improperly “collapsing” other causes of action into the breach of contract cause of action, finding that they all fell together.

(4) not allowing the fraud-based causes of action to proceed to discovery.

(5) the Court’s finding that Plaintiff was on inquiry notice beginning in 2018 is not supported by the pleaded facts when they are construed in Plaintiff’s favor.

(6) the Court improperly treated a 2020 publication date as the accrual-triggering date despite Plaintiff not actually discovering that article until 2025.

(7) the Court improperly found leave to amend would be futile where Plaintiff identified several potential additional amendments he could add regarding delayed discovery, lack of actual suspicion, concealed information, contract-related clarification, independent tort duties, and information clarifications.

(8) The Court mischaracterizes the record.

1. Breach of Contract

As for pleadings standards, the Court agrees that in general, a plaintiff need only allege “ultimate facts.” Ultimate facts are those “constituting the cause of action” or those upon which liability depends, e.g., duty of care, breach of the duty and causation (damages). (See *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550.) “[T]he term ultimate fact generally refers to a core fact, such as an essential element of a claim. Ultimate facts are distinguished from evidentiary facts and from legal conclusions.” (*Central Valley General Hosp. v. Smith* (2008) 162 Cal.App.4th 501, 513 [cleaned up]; see also *Rodriguez v. Parivar, Inc.* (2022) 83 Cal.App.5th 739, 750–751 [“The elements of a cause of action constitute the essential or ultimate facts in a civil case”].)

However, more is required to allege a breach of contract. The elements for a breach of contract cause of action are (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the

resulting damage to the plaintiff. (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.) But it is insufficient to merely allege that a contract exists.

First, a plaintiff alleging a breach of contract must allege whether the alleged contract is written, oral, or implied by conduct. (See Code Civ. Proc., § 430.10, subd. (g).) Second, for written contracts, a plaintiff must attach a copy of the contract, must plead their material terms in haec verba, or must plead the legal effect of the written contract. (See Miles v. Deutsche Bank National Trust Co. (2015) 236 Cal.App.4th 394, 402.)

Here, Plaintiff alleges the relevant terms in haec verba (see FAC ¶ 8.8) and attached a copy of the relevant portions of the agreement the operative complaint (see Ex. G.)

Regarding contract interpretation, “The language of a contract is to govern its interpretation, if the language is clear and explicit, and does not involve an absurdity.” (Civ. Code, § 1638.) Further, “When a contract is reduced to writing, the intention of the parties is to be ascertained from the writing alone, if possible[.]” (Civ. Code, § 1639.)

Accordingly, the Court interpreted the plain meaning of the contractual language as it was pled in haec verba and as it appeared in the attachment to the operative complaint.

The contract provision at issue states: “Fox agrees not to use Player’s name, voice or likeness in connection with the merchandising of, or commercial tie-ins to political or religious advertising.” (FAC ¶ 8.8 & Ex. G.) Plaintiff further alleges Fox breached that provision by requiring him to wear a Keffiyeh while filming the program itself. (FAC ¶ 8.9 [“I was directed and subsequently forced [...] to wear a Keffiyeh on camera”].)

The Court interpreted the plain meaning of the contractual provision, prohibiting Fox from using Plaintiff’s name, voice, or likeness in connection with merchandising or advertising in combination with the breach Plaintiff alleges (that he was forced to wear a Keffiyeh on set while filming the actual program) and concluded that Plaintiff had not alleged any breach of the contractual provision identified. (See Minute Order, Apr. 30, 2026 at pp. 6-7 [“Pursuant to the plain language of the consent exclusions clause, Fox shall not use Plaintiff’s image or likeness in political or religious advertising, and there is no allegation that Fox used Plaintiff’s image or likeness in anything other than the Empire episodes themselves”].)

The FAC also referenced an indemnification clause. (See FAC ¶ 8.11 & Ex. H.) Plaintiff similarly claims that Fox breached the indemnification clause by requiring Plaintiff to wear the Keffiyeh on camera during the filming of the program and then declining to pick up his option to become a recurring character. (See FAC ¶ 8.12 [“Each of these prongs was triggered by the aforementioned conduct. My role was diminished and altered; politically sensitive wardrobe was furnished by production; and the result was reputational harm and economic fallout[.] Fox never disclosed this risk, never intervened to mitigate it, and thus violated its own contractual duties”].)

The Court similarly found the indemnification clause to be unambiguous, and explained, “Read in whole and in context, the indemnification clause [indemnifying Plaintiff against any damages, claims, or losses arising from certain actions by Fox vis-à-vis the production, distribution, and/or exploitation of the Series] clearly applies to third-party claims, not losses due to Fox’s decision not to pick up his option to become a series regular or general reputational harm Plaintiff may have suffered by virtue of his work and/or appearance on the show. Such an interpretation would effectively convert the “option” to a mandatory provision, something clearly neither party intended.” (Minute Order, Apr. 30, 2026 at p. 7.) “Interpretation of a contract must be fair and reasonable, not leading to absurd conclusions.” (ASP Properties Group, L.P. v. Fard, Inc. (2005) 133 Cal.App.4th 1257, 1269.)

Thus, the Court did not apply the wrong standard, nor did it err in interpreting the plain language of the contractual provisions at issue, comparing that contractual language to the conduct alleged, and concluding that the FAC failed to allege Fox breached the contractual provisions identified by the conduct alleged. No inferences were made in any party’s favor. Rather, the conduct alleged did not violate the plain language of the contractual provisions alleged. In other words, under the relevant pleadings standard, Plaintiff simply failed to state facts sufficient to constitute a cause of action for breach of contract.

2. Causes of Action Derivative of Breach of Contract Allegations

There is an even further heightened pleading standard for causes of action sounding in fraud. “In California, fraud must be pled specifically; general and conclusory allegations do not suffice.” (Lazar v. Superior Court (1996) 12 Cal.4th 631, 645.) “This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered.” (Ibid.)

Thus, when interpreting causes of action sounding in fraud, it is appropriate for the Court to scrutinize the specific basis for the alleged fraud, and whether it is sufficiently pled with specific supporting facts.

Here, the Court held that the Second Cause of Action for intentional misrepresentation is premised on the failure to disclose that “this wardrobe choice fell under a Consent Exclusions clause[.]” (Minute Order, Apr. 30, 2026 at p. 7.) Because the Court already determined that the alleged conduct of requiring Plaintiff to wear the Keffiyeh on set during the filming of the show did not violate the Consent Exclusions clause, the failure to disclose that it did does not constitute a misrepresentation. (Minute Order, Apr. 30, 2026 at p. 7.)

The Court did not simply collapse multiple causes of action down, without thought or analysis. Rather, the Court went through each subsequent cause of action, and found that, to the extent a cause of action was premised on Fox’s alleged failure to disclose or concealment of contractual breaches, that cause of action similarly failed as alleged. On this basis, the Court similarly sustained the Prevailing Defendants’ demurrer to the second, third, fourth, sixth, seventh, eighth, fifteenth, and sixteenth causes of action, but did not sustain the demurrer to the fifth, ninth, tenth, eleventh, twelfth, fourteenth, or seventeenth causes of action, finding that these latter causes of action were not premised upon the same contractual breach allegations the Court found to be defective. (Minute Order, Apr. 30, 2026 at pp. 8-9.)

There is no basis to allow defectively-pleaded fraud and other tortious causes of action to proceed to discovery. The Court did not err in sustaining the Prevailing Defendants’ demurrer to these causes of action premised on the defective contractual allegations on the grounds that Plaintiff had not adequately alleged them.

3. Remaining Causes of Action

The Court sustained the Prevailing Defendants’ demurrer to the remaining causes of action, not premised on the defective contractual allegations, on the grounds that they were time barred. In so holding, the Court analyzed the timing of the facts as alleged, and determined, based on the allegations, when, as a matter of law Plaintiff was on inquiry notice of his potential claims, and when the statute of limitations began to run.

Plaintiff’s arguments conflate actual notice (i.e. when Plaintiff actually suspected wrongdoing) with constructive or inquiry notice (i.e. when Plaintiff was aware of the facts underlying his claims).

Here, Plaintiff has alleged and repeatedly reiterated that he was contemporaneously aware of facts underlying his claims (i.e. the things Prevailing Defendants said and did to him) when they happened to him in or around 2018. Further, while Plaintiff did not actually possess a copy of his contract until he requested it in or about October 2024, he knew the contract existed when he signed it in early 2018. And because Plaintiff does not allege he requested or was denied a copy of his contract at any point between 2018 and October 2024 when he requested and received a copy, Plaintiff does not allege any facts supporting fraudulent concealment or equitable tolling.

Similarly, for Plaintiff’s defamation claim, he alleges that the facts underlying this claim were revealed in a 2020 publication. It similarly does not matter that Plaintiff did not actually read that 2020 publication until 2025. To the extent the information was publicly available in 2020, which Plaintiff has alleged, Plaintiff was on constructive notice of the information contained therein as a matter of law.

For purposes of the statute of limitations, it does not matter that Plaintiff did not actually read certain information that was otherwise available for him to access or actually put the pieces together that wrongdoing may have occurred until years later. What matters is when Plaintiff was aware of the underlying facts upon which he bases his claims. Here, that was 2018 and 2020.

Plaintiff's misinterpretation of the law in this regard is not a factual inference the Court is required to make in Plaintiff's favor. The Court accepts all facts exactly as alleged, and merely rejects Plaintiff's interpretation of the legal import of those facts.

Thus, the Court's inquiry notice analysis is grounded in the facts as alleged.

4. Leave to Amend

Plaintiff argues that leave to amend should be liberally granted. Indeed, on a motion for leave to amend, judicial policy favors resolution of all disputed matters between the parties and, therefore, leave to amend is liberally granted. (*Berman vs. Bromberg* (1986) 56 Cal.App.4th 936, 945; *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 488-489 [this has been an established policy in California since 1901].)

To wit, the Court of Appeal in *Morgan v. Superior Court* held: "If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (*Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530, emphasis added & citations omitted.) Moreover, "it is an abuse of discretion for the court to deny leave to amend where the opposing party was not misled or prejudiced by the amendment." (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1048 [opposing party did not establish harm by the delay in moving to amend the complaint].)

But on a demurrer or motion to strike, a plaintiff has the burden of showing in what manner the complaint could be amended and how the amendment would change the legal effect of the complaint, i.e., state a cause of action. (See *The Inland Oversight Committee v. City of San Bernardino* (2018) 27 Cal.App.5th 771, 779; *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.* (2017) 14 Cal.App.5th 156, 189.) A plaintiff must not only state the legal basis for the amendment, but also the factual allegations sufficient to state a cause of action or claim. (See *PGA West Residential Assn., Inc. v. Hulven Int'l, Inc.*, supra, 14 Cal.App.5th at p. 189.) Moreover, a plaintiff does not meet his or her burden by merely stating in the opposition to a demurrer or motion to strike that "if the Court finds the operative complaint deficient, plaintiff respectfully requests leave to amend." (See *Major Clients Agency v Diemer* (1998) 67 Cal.App.4th 1116, 1133; *Graham v. Bank of America* (2014) 226 Cal.App.4th 594, 618 [asserting an abstract right to amend does not satisfy the burden].)

Here, Plaintiff's opposition brief did not identify any factual allegations that could be added to the complaint. Rather, it simply indicated:

To the extent the Court finds any portion of the FAC deficient, Plaintiff respectfully requests leave to amend under well-established standards. *Solit v. Tokai Bank* (1999) 68 Cal.App.4th 1435. It constitutes an abuse of discretion to sustain a demurrer without leave to amend where a reasonable possibility to cure any deficiency exists. *Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074. Defendants' reliance on *Applied Equipment Corp. v. Litton Saudi Arabia Ltd.* is misplaced. Plaintiff does not assert civil conspiracy as a standalone tort, but as a theory of joint liability tied to independently actionable claims: fraud, concealment, slander, and interference. *Wise v. Southern Pacific Co.*, (1963) 59 Cal.2d 507; CACT 3600.

To the extent clarification is required, such issues are properly addressed through amendment — not dismissal at the demurrer stage. Plaintiff maintains all rights to supplement, clarify, or expand upon the allegations through amendment and discovery.

(Plaintiff's Opposition to Prevailing Defendants' Demurrer, Apr. 8, 2026, at p. 33.)

Notwithstanding, recognizing his pro per status, the Court informed Plaintiff at the hearing that if he can articulate any facts that could be added to the complaint to cure the statute of limitations issue, the Court would be inclined to grant him leave to amend. (Minute Order, Apr. 30, 2026 at p.12.) The Court then asked Plaintiff three separate times if he had any additional facts to allege to cure the statute of limitations problem. Each time, Plaintiff responded by arguing that the FAC already alleged sufficient facts. (Ibid.) The final time, Plaintiff added that leave should be granted so he can better argue or frame the facts already alleged. (Ibid.)

As such, finding Plaintiff had effectively conceded that he has no additional facts to allege, the Court sustained the Prevailing Defendants' demurrer without leave to amend.

Subsequently, Plaintiff moved for leave to amend or in the alternative for reconsideration of the Court's April 30, 2026 Order sustaining Prevailing Defendants' demurrer without leave to amend. The Court denied reconsideration, finding that most of the "new facts" Plaintiff identified were not actually new, and to the extent any of the facts were new, Plaintiff had not adequately explained his failure to raise them at the hearing on the demurrer. The Court further denied leave to amend for failure to comply with the procedural requirements of California Rules of Court, rule 3.1324 and for failure to adequately explain when the facts giving rise to the proposed amendment were discovered and why the motion for leave to amend could not have been made sooner.

Thus, the Court did not err in denying leave to amend.

5. "Discrepancies" between April 21 Hearing and April 30 Order

Finally, Plaintiff advances a chart contrasting statements he made at the April 21 hearing and the Court's April 30 Order. But as discussed above, it is not error for the Court to reject Plaintiff's legal arguments or erroneous legal interpretations. Those are not factual inferences the Court must make in Plaintiff's favor.

For example, Plaintiff indicates that because he stated at the hearing, "The contractual arguments ... are reasonably susceptible to my interpretations" the Court erred in not accepting that legal statement as true. To the contrary, as discussed above, the plain language of the agreement controls. Finding no ambiguity in the plain language of the agreement, it is not reasonably susceptible to Plaintiff's interpretation as a matter of law. Plaintiff's assertion to the contrary is not a fact the Court must accept as true.

Further, Plaintiff argued at the hearing, "Move this case forward to discovery ... so we can actually prove whether this was concealed or not" yet the April 30 order concludes "There were no breaches of contract to conceal."

Yet, Plaintiff's desire for his pleadings to withstand demurrer and move into the discovery phase is not a factual inference to be made in Plaintiff's favor. Because Plaintiff's fraudulent concealment cause of action was premised upon the concealment of contractual breaches, and because Plaintiff did not adequately allege any contractual breaches, it was not error for the Court to conclude there were no breaches of contract to conceal.

Additionally, the Court is not required to accept as true any argument or position Plaintiff states at the hearing. The Court need only accept as true the well-pled factual allegations in Plaintiff's operative complaint. Here, it has done so. There is no factual dispute about whether Plaintiff signed his contract in 2017 or 2018. The Court accepts as true Plaintiff's own allegations that he signed it in early 2018. (FAC ¶¶ 4.5-4.7 [alleging he signed the contract on his first day], 4.10 [alleging he was flown to Chicago for filming in January 2018], 4.19 [alleging he completed filming in mid-March 2018].) There is no factual dispute as to whether Ms. Hamri's announcement about an Arab-led comedy series occurred in 2020 or 2021. The Court accepts as true Plaintiff's own allegation that the announcement occurred in 2020. (See FAC ¶ 4.30.)

Nor has Plaintiff fashioned a factual dispute regarding the contract by arguing an interpretation at odds with the plain language of the provisions provided.

To the extent Plaintiff's chart references the Court's statement of law, which Plaintiff asserts was ultimately erroneously resolved against Plaintiff, as discussed above, the mere fact that the law is not on Plaintiff's side is not a discrepancy or error, and the mere fact that Plaintiff made a legal argument or framed the issues in a certain way at the hearing does not make it a factual inference to be presumed in Plaintiff's favor.

Nor is it a "discrepancy" that the Court took the tentative ruling under submission and then ultimately denied Plaintiff leave to amend. Taking a tentative ruling under submission is not a guarantee that the Court will change its tentative ruling or otherwise rule in a particular way.

Here, the Court took the tentative ruling under submission to incorporate arguments made at the hearing into the ruling. The tentative ruling was to deny leave to amend on the grounds that Plaintiff's opposition brief did not raise any additional facts that could be added to the pleading. By contrast, the Minute Order addresses the additional arguments Plaintiff raised at the hearing, and concludes that despite three opportunities to do so, Plaintiff merely reiterated that the facts he had already pleaded were sufficient, and requested leave to amend only to reframe or recharacterize those existing facts, not to add any new facts that could cure the problems identified by the Court.

As such, the Court correctly concluded, based on the statements Plaintiff himself made at the hearing, that granting Plaintiff leave to further amend the Complaint to reiterate the same facts, just framed differently, would be futile.

The Court already applied the law to Plaintiff's existing factual allegations. Allowing Plaintiff to insert Plaintiff's interpretation of the law into the complaint will not change the Court's analysis. Additional reasons why Plaintiff did not actually realize his colleagues giving him the cold shoulder during filming, not taking his option for a recurring role, and not asking him back after March 2018 were contractual breaches, fraud, retaliation, discrimination, and/or defamation, etc. until 2024 or 2025 will not change the Court's analysis that Plaintiff was aware of the underlying facts in 2018 and 2020, thus barring his claims as a matter of law.

CONCLUSION AND ORDER

Having found no error in law or that any portion of the opinions upon which the Judgment is based were unsupported by the facts alleged in the operative FAC, the Court denies Plaintiff's motion to vacate the judgment.

Plaintiff shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED: August 5, 2026 ____/s/____

Michael E. Whitaker

Judge of the Superior Court

TENTATIVE

RULING – NO. 2

DEPARTMENT

207

HEARING DATE

August

5, 2026

CASE NUMBER

25SMCV03853

MOTION

Motion

to Tax Costs

MOVING PARTY

Plaintiff

Khaled Ouaaz aka Kade Wise

OPPOSING PARTY

none

MOTION

On July 28, 2025, Plaintiff Khaled Ouaaz a/k/a Kade Wise ("Plaintiff")

brought suit against Defendants 20th Century Television, Inc., fka

20th Century Fox Television, Inc. ("20th Century"); Lee

Daniels Entertainment, Ltd. ("Lee Daniels Ent."); Danny Strong Productions

("Danny Strong Prod."); Imagine Entertainment, Inc. ("Imagine"); Dana Walden

("Walden"); Gary Newman ("Newman"); Lee Daniels ("Daniels"); Danny Strong

("Strong"); Sanaa Hamri ("Hamri"); Paolo Nieddu ("Nieddu"); Brian Grazer

("Grazer"); Carlito Rodriguez ("Rodriguez"); Jonnie Davis ("Davis"); Carolyn

Cassidy ("Cassidy"); Howard Kurtzman ("Kurtzman"); Brett Mahoney ("Mahoney");

Diane Ademu-John ("Ademu-John"); Ilene Chaiken ("Chaiken"); Craig Berger

("Berger"); Matt Pyken ("Pyken"); Dennis Hammer ("Hammer"); Joshua Allen

("Allen"); Eric Haywood ("Haywood"); Jasheika James; Janeika James; Dianne

Houston ("Houston"); and Jamie Rosengard ("Rosengard").

The operative First Amended Complaint ("FAC") was filed on September

15, 2025, alleging eighteen causes of action as follows:

1.

Breach of Contract

2.

Intentional Misrepresentation

3.

Fraudulent Concealment

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Actual Fraud

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Defamation of Character

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Breach of Implied Covenant of Good Faith and Fair

Dealing

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Intentional Interference with Contractual Relations

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Intentional Interference with Prospective Economic

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Demotion Discrimination

10. Promotion

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11. Political

Discrimination

12. Intersectional

Discrimination

13. Disparate

Impact Discrimination

14. Retaliation

15. Right

of Publicity

16. Civil

Conspiracy

17. Intention

Infliction of Emotional Distress

18. Negligence

On April 30, 2026, the Court sustained the demurrer of Defendants 20th

Century, Lee Daniels Ent., Imagine, Walden, Newman, Daniels, Hamri, Grazer,

Cassidy, Ademu-John, Chaiken, Brewer, Allen, Haywood, and Rosengard (“Prevailing

Defendants”) without leave to amend.

On May 11, 2026, the Prevailing Defendants filed a Memorandum of Costs

seeking \$6,110.25, comprised of \$6,090 in filing and motion fees and \$20.25 for

electronic filing or service.

Plaintiff filed the instant motion to strike or tax costs on July 7,

2026. Plaintiff’s motion is unopposed.

LEGAL

STANDARDS

“Except as otherwise expressly provided by statute, a prevailing party

is entitled as a matter of right to recover costs in any action or

proceeding.” (Code Civ. Proc., § 1032,

subd. (b).)

Code of Civil Procedure section 1033.5, subdivision (a) sets forth

items that are allowable as costs. Allowable costs under Section 1033.5 must be

“reasonably necessary to the conduct of this litigation rather than merely

convenient or beneficial to its preparation” and “reasonable in amount.” (Code

Civ. Proc., § 1033.5, subd. (c)(2)-(3).) “Items not mentioned in [Section

1033.5] and items assessed upon application may be allowed or denied in the

court’s discretion.” (Id. at subd. (c)(4).)

On a motion to tax, “[i]f the items appearing in a cost bill appear to

be proper charges, the burden is on the party seeking to tax costs to show that

they were not reasonable or necessary. On the other hand, if the items are

properly objected to, they are put in issue and the burden of proof is on the

party claiming them as costs. Whether a cost item was reasonably necessary to

the litigation presents a question of fact for the trial court and its decision

is reviewed for abuse of discretion. However, because the right to costs is

governed strictly by statute a court has no discretion to award costs not

statutorily authorized.” (Ladas v. California State Auto. Assn. (1993)

19 Cal.App.4th 761, 774, internal citations omitted.)

“The court’s first determination, therefore, is whether the statute

expressly allows the item, and whether it appears proper on its face. If so, the burden is on the objecting party to show them to be unnecessary or unreasonable.” (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, internal citations omitted.) The objecting party does not meet this burden by arguing that the costs were not necessary or reasonable, but must present evidence and prove that the costs are not recoverable. (Litt v. Eisenhower Med. Ctr. (2015) 237 Cal.App.4th 1217, 1224; Seever v. Copley Press, Inc. (2006) 141 Cal.App.4th 1550, 1557.)

ANALYSIS

“Any notice of motion to strike or tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(3).” (California Rules of Court, rule 3.1700(b)(1).)

Here, the prevailing Defendants’ Memorandum of Costs was filed and served by mail on May 11, 2026. Fifteen days after May 11 is May 26. Five days after May 26 (to account for

service by mail, pursuant to Code of Civil Procedure section 1013) is Sunday,

May 31, which extends to Monday, June 1, by operation of Code of Civil

Procedure sections 12, 12a, and 12b. Thus,

Plaintiff's deadline to challenge the Memorandum of Costs was June 1.

Yet, Plaintiff did not file the

instant motion until July 7, 2026. As

such, Plaintiff's motion is untimely.

CONCLUSION

The Court denies

Plaintiff's motion as untimely. Plaintiff

shall provide notice of the Court's ruling and file the notice

with a proof of service forthwith.

DATED: August 5, 2026 ____/s/____

Michael

E. Whitaker

Judge

of the Superior Court